

24SMCV03269 24SMCV03269

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Case Number: 24SMCV03269 Hearing Date: June 23, 2026 Dept: M

CASE NAME: Woods v. Acadia

Malibu Inc., et al.

CASE NO.: 24SMCV03269

MOTION: Motion

to Compel Deposition

HEARING DATE: 6/23/2026

Legal

Standard

Service of a proper deposition notice obligates a party or

"party-affiliated" witness (officer, director, managing agent or employee of

party) to attend and testify, as well as produce any document, electronically

stored information, or tangible thing for inspection and copying. (CCP §

2025.280(a).) If, after service of a deposition notice, a party deponent fails

to appear, testify, or produce documents or tangible things for inspection

without having served a valid objection under CCP § 2025.410, the deposing party may move for an order compelling attendance, testimony, and production. (CCP § 2025.450(a).) The motion must be accompanied by a meet and confer declaration, or, when a party deponent fails to attend the deposition, the motion must also be accompanied by a declaration stating that the moving party has contacted the party deponent to inquire about the nonappearance. (CCP § 2025.450(b)(2).) If the deposition notice included a request for production of documents, the motion to compel attendance must also show good cause to justify the production. (CCP § 2025.450(b)(1).) The motion to compel must be “made no later than 60 days after the completion of the record of the deposition.” (CCP § 2025.480(b).)

Analysis

Defendant Acadia Malibu Inc. moves

to compel the deposition of Plaintiff Symere Woods to take place within 20 days of this hearing at Defendant's counsel's office, 401 Wilshire Blvd., Ste. 1070, Santa Monica, CA 90401.

Plaintiff objects under Code of Civil

Procedure (“CCP”) section 1989. “Section 1989 prohibits the trial court from compelling a foreign resident to attend a deposition in California.” (Toyota Motor Corp. v. Superior Court (2011) 197 Cal.App.4th 1107, 1113; see also I-CA Enterprises, Inc. v. Palram Americas, Inc. (2015) 235 Cal.App.4th 257, 282 [trial

court properly determined that it had no power to compel production of non-resident corporate party's PMK within California per the limitations set forth in section 1989.] Section 1989 does not distinguish between a non-party and party witness. In fact, section 1987 expressly applies to both non-party and party witnesses. CCP section 2025.250 also geographically limits the deposition of a natural person, including parties, to take place "either within 75 miles of the deponent's residence, or within the county where the action is pending and within 150 miles of the deponent's residence."

Also, CCP section 2025.260 does not override section 1989's residency limitation. (Toyota, supra, 197 Cal.App.4th at 1113.) There is no dispute that Plaintiff is not a resident of California. Thus, the Court may not order Plaintiff, a non-resident of California, to be deposed within California. Instead, a non-resident party may be compelled to attend a deposition within the United States and within 75 miles of the residence or a business office of a deponent. (CCP § 2026.010.)

Accordingly, the motion to compel Plaintiff's deposition as noticed is DENIED. Plaintiff notices no sanctions and provides no evidence of attorneys' fees expended on this opposition. Thus, the court declines to issue sanctions.